

****October 20, 2023****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed an investigation in September 2023 regarding the operator DANTE INTERNAȚIONAL SA and found a violation of the provisions of Article 6 of Regulation (EU) 2016/679. As such, the operator was sanctioned with a fine amounting to 4,974.9, equivalent to the sum of 1,000 EURO, for violating Article 6 of Regulation (EU) 2016/679.

The sanction was applied following a complaint alleging that Dante InternaȚional SA, holder of www.fashiondays.ro, processed the complainant's phone number for direct marketing purposes without their consent, sending them commercial SMS messages.

During the investigation, the operator did not provide evidence of the complainant's consent or any other legal basis for processing their personal data for direct marketing purposes, specifically the transmission of SMS commercial messages informing them about certain offers from the operator, thus violating the provisions of Article 6 of the GDPR.

In addition to the fine, the National Authority for the Supervision of Personal Data Processing also imposed corrective measures, ordering the operator to take the necessary steps to obtain the express prior consent for the processing of the data of the data subjects for marketing purposes and to ensure that the processing operations comply with the provisions of the GDPR, specifically that personal data is processed only on the basis of an express legal basis in accordance with Article 6 of the GDPR.

****Legal and Communication Directorate****

****N.A.S.P.D.C.P.****